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MUCHANGI PATRICK & ASSOCIATES

ADVOCATES OF THE HIGH COURT OF KENYA · DIGITAL TRUST ASSURANCE

EXECUTIVE BRIEF — NO. 004

Protecting the *Child* Behind the Form

Digital compliance for Kenyan schools — admissions portals, biometric attendance, learner photographs and third-party EdTech platforms, and the registration obligation most schools don't know applies to them.

PREPARED FOR

Boards of Governors, Proprietors,
Principals & School Administrators

SECTOR

Education Governance

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This Executive Brief forms part of the Muchangi Patrick & Associates Advocates Knowledge Centre — published for educational and informational purposes as a contribution to Board-level governance discussion.

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EXECUTIVE SUMMARY

Kenyan schools now run most of their operations through digital channels — online admissions, biometric attendance, school management platforms, and websites promoting school life through photographs of learners. Each of these channels collects, stores or displays data belonging to children, who are among the categories of data subject the Data Protection Act 2019 protects most closely.

Fewer schools realise that the Data Protection (Registration of Data Controllers and Data Processors) Regulations, 2021 name “educational institutions” as a sector subject to mandatory registration with the ODPC — regardless of turnover or employee count. The general small-entity exemption (turnover under KES 5 million and fewer than 10 employees) does not apply to schools. Most Kenyan schools that have never registered are not exempt; they are simply unregistered.

This Executive Brief sets out what that means in practice — and the questions every Board of Governors and proprietor should be able to answer about how their school governs the data of the children in its care.

WHY THIS MATTERS

A registration duty most schools have never heard of.

Children Are Not “Ordinary” Data Subjects

Section 33 of the DPA requires heightened safeguards and, generally, parental consent.

A Registration Duty Most Schools Miss

Educational institutions must register with the ODPC regardless of turnover or headcount — the small-entity exemption does not apply.

Reputational Exposure

A single mishandled admissions form or leaked class photo reaches parents faster than any regulator ever could.

01

Registration with the ODPC

Educational institutions are named as a mandatory registration category under the Data Protection (Registration) Regulations, 2021 — irrespective of the school's size or turnover.

02

Online Admissions & Enrolment

Whether admission forms collect only what is necessary, and whether unsuccessful applicants' data is ever deleted.

03

Parental Consent for a Child's Data

Whether there is a distinct, recorded consent step for a child's data — separate from the general terms of enrolment.

04

Photographs & Videos of Learners

Whether publishing images on a website or social media rests on a documented consent or opt-out mechanism.

05

Biometric Systems & EdTech Vendors

Necessity and proportionality of biometric attendance data, and data processing agreements with School Management System providers.

06

CCTV & Physical Safeguarding

Signage, retention and a clear policy distinguishing safeguarding from surveillance, particularly around classrooms.

QUESTIONS WORTH ASKING AT THE NEXT BOARD MEETING

Seven questions to put to school leadership this term.

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| 01 | Has our school ever registered as a data controller with the ODPC? |
| 02 | Is there a distinct, recorded parental consent step for each category of a child's data we collect? |
| 03 | Do we have a signed data processing agreement with every EdTech and School Management System vendor? |
| 04 | Is there a documented, opt-out-capable process for publishing photographs of learners? |
| 05 | Was the necessity of any biometric data collection for learners formally assessed before deployment? |
| 06 | Does the Board of Governors receive any reporting on data protection compliance at all? |
| 07 | If the ODPC inspected our school tomorrow, could we produce a certificate of registration? |

ABOUT

Phoenix Digital Trust Assurance

Phoenix Digital Trust Assurance is an independent governance methodology developed by Muchangi Patrick & Associates Advocates to assist Boards and executive leadership in strengthening organisational governance across privacy, cybersecurity, information governance, technology governance, artificial intelligence, third-party risk and continuous improvement. The methodology promotes structured governance oversight rather than reactive compliance.

Muchangi Patrick & Associates Advocates

A Kenyan law firm specialising in Data Protection, Privacy, Digital Governance and Emerging Technology Law. Through its Knowledge Centre and Phoenix Digital Trust Assurance initiative, the firm publishes practical governance resources designed to assist Boards and executive leadership in navigating the evolving digital economy.

CONTINUE THE CONVERSATION

Book a Complimentary 10-Minute Digital Trust Gap Analysis

If this Executive Brief raises governance questions relevant to your organisation, we would be pleased to discuss them with you — current governance priorities, privacy and cybersecurity oversight, Digital Trust maturity, and practical next steps.

Muchangi Patrick & Associates Advocates · Pinetree Plaza, Nairobi · 0722 878 607 · consult@dataprivacyadvocates.co.ke

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